IN THE HIGH COURT OF ORISSA AT CUTTACK

CRLA No.924 of 2019

In the matter of an Appeal under section 374(2) of the Code of Criminal Procedure, 1973 and from the judgment of conviction and order of sentence dated 26th September, 2011 passed by the learned Ad hoc Additional Sessions Judge, FTC, Jagatsinghpur, in S.T. No.34/19 of 2011.

Tubu @ Anil Kumar Swain .... ***Appellant***

-versus-

State of Odisha .... ***Respondent***

Appeared in this case by Hybrid Arrangement (Virtual/Physical Mode):

For Appellant - Mr.Rajib Bihari Mishra
Advocate

For Respondent - Mr.S.K. Nayak,
Addl. Government Advocate
Mr.P.K.Nanda
Advocate for the Informant

CORAM:
MR. JUSTICE D.DASH
DR. JUSTICE S.K.PANIGRAHI

Date of Hearing : 17.05.2023 : Date of Judgment:21.06.2023

D.Dash,J. The Appellant, by filing this Appeal has challenged judgment of conviction and order of sentence dated 26th September, 2011 passed by the learned Ad hoc Additional Sessions Judge, FTC, Jagatsinghpur, in S.T. No.34/19 of 2011 corresponding out of G.R. Case No.690 of 2010 arising out of Raghunathpur P.S. Case No.69 of 2010 of

the court of learned Sub-Divisional Judicial Magistrate (S.D.J.M.), Jagatsinghpur.

By the same, the Appellant (accused) has been convicted for commission of offence under section 302 of the Indian Penal Code, 1860 (for short called as 'the IPC'). Accordingly, he has been sentenced to undergo imprisonment for life and pay fine of Rs.10,000/- (Rupees Ten Thousand), in default to undergo further imprisonment for one (1) year with the stipulation that the fine amount, if realized, would be paid to the Informant (P.W.7), who happens to be nephew of Surenderanath (deceased).

2. The prosecution case is that, Surenderanath Maharana (deceased), who happens to be the elder father of the Informant namely, Asit Kumar Maharana (P.W.7) was taking the tea in the tea stall of one Basanta Sahoo. On 15.10.2010 during morning hours, it is stated that accused came there and dealt blows by means of spade on his face, neck and head and thus intentionally caused his death. The Informant (P.W.7) thereafter, presented a written report with the Inspector-In-Charge (IIC), Raghunathpur P.S. (P.W.8). Receiving the said written report, the IIC, treated the same as F.I.R., registered the case. Having done so, he carried on the investigation himself. He examined the Informant-P.W.7 and other witnesses, he also visited the spot and prepared spot map, Ext.9. He then held inquest over the dead body of the deceased and prepared the report in presence of the witnesses which is Ext.3. The blood stained and sample earth were collected and seized under seizure list, Ext.4. The dead body of the deceased was sent for postmortem examination by issuing necessary requisition and the wearing apparels of the deceased were thereafter seized under proper seizure list. The

accused being arrested, gave his statement and led the I.O. (P.W.8) and others to the place where he had kept the spade and wearing apparels and gave recovery of the same which were then seized under seizure list. The incriminating articles were then sent for chemical examination and report to that effect was received. On completion of investigation, Final Form was submitted by the I.O.(P.W.8), placing the accused to face the trial for the said offence.

3. Learned SDJM, Jagatsinghpur, having received the Final Form as above took cognizance of said offence and after observing the formalities, committed the case to the Court of Sessions that is how the Trial commenced by framing the charge for the said offence against the accused.

4. In the Trial, the prosecution has examined in total eight (8) witnesses. As already stated, the Informant who happens to be the nephew of the deceased is P.W.7. The Doctor who had conducted postmortem over the dead body of the deceased is P.W.2. P.Ws. 1, 3, 4 and 5 are the important eye witnesses for the prosecution. The Investigating Officer has come to the witness box as P.W.8.

5. The prosecution besides leading the evidence by examining the above witnesses has proved several documents, which have been admitted in evidence and marked Exts.1 to 12. Out of those as already stated the F.I.R. is Ext.8 whereas the postmortem report as well as the inquest report as Ext.3 and Ext.1 respectively. The Chemical Examiner's report has been proved as Ext.12 and the statement of the accused leading the police and other witnesses in giving the recovery of the weapon and his wearing apparels has been admitted in evidence and

marked Ext.5. In the Trial, the wearing apparels of the deceased as well as of the accused have been produced as Material Objects (M.O.-I to M.O.-IV).

6. The plea of the defence is that of complete denial and false implication. However, in the Trial, the accused has not tendered any evidence either oral and documentary.

7. Learned counsel for the Appellant (accused), submitted that the appreciation of the evidence let in by the prosecution, as has been made by the Trial Court, is not at all at par with the standard as is required to return a finding of guilt against the accused in intentionally causing the death of the deceased, namely, Surendranath Moharana. He further submitted that the evidence of four witnesses, i.e., P.Ws.1, 3, 4 & 5 have not at all been examined keeping one by the side of the other and variance in their evidence as to the happenings of the incident and the role played by the accused as also other details, which make the entire prosecution case unbelievable have been quietly ignored. He further submitted that all these above witnesses being highly interested for the success of the prosecution and in some way or the other being not in good terms with the accused when their evidence are irreconcilable on material aspects of the case and also do not receive corroboration from independent sources, the Trial Court ought not to have held the accused guilty for commission of offence under section 302 of the I.P.C.

8. Learned counsel for the Respondent-State, refuting the above submission, contended all in favour of guilt against the accused, as has been returned by the Trial Court. According to him, the eye witnesses (P.Ws.1, 3, 4 & 5) have provided the graphic details relating to the

incident right from the beginning till the end, which covers the role played by the accused in dealing the fatal blows upon the deceased, which has caused his death. He submitted that barring few minor variations in the evidence of those witnesses, there is neither any other infirmity nor the variance on material aspect of the incident including the part played by the accused therein. He further submitted that the Trial Court has gone for a detail analysis of the evidence of all those witnesses and did commit no mistake in ultimately arriving at a conclusion that the prosecution has proved the charge against the accused beyond reasonable doubt by leading clear, cogent and acceptable evidence. He further submitted that the evidence of P.Ws.5 & 8, having rightly been taken by the Trail Court into confidence, the finding as to the recovery of spade and the wearing apparels of the accused from the place know to him and within his special knowledge has been proved and, therefore, the disclosure statement of the accused to that effect too stands to corroborate the evidence of the eye witnesses.

9. Keeping in view the submissions made, we have carefully read the judgment passed by the Trial Court. We have also gone through the deposition of all the witnesses (P.Ws.1 to 8) and perused the documents admitted in evidence and marked Exts.1 to 12.

10. One Co-villager of the accused and the deceased, who is the eye witness to the occurrence, has been examined as P.W.1. His evidence is that in the year 2010 on the Mahastami day, he was present in the tea stall of Basanta Sahoo at Gualipur Chhak and it was around 11.00 a.m. He further states that with him, Madhab Swain (P.W.4), Pratap (P.W.5), Bidyadhar and others were present. It is stated that they were taking tea when the deceased was inside the tea stall. He has stated that the

accused came there holding a spade and started abusing the deceased in filthy languages. He has further deposed that when the deceased came out of the tea stall, this accused suddenly dealt a blow by means of that spade on his face, which resulted his fall. He has further stated that the accused thereafter dealt blows repeatedly on the head, face and neck of the deceased for which the deceased sustained profuse bleeding injuries.

The Doctor (P.W.2), who had conducted the autopsy over the dead body of the deceased, has found four lacerates wound present on the head, face and neck etc, which clearly supports the version of P.W.1 not only as to the seat of injury but also as to the nature as well as their numbers. P.W.1 has been cross-examined, but we find that he has firmly withstood the cross-examination. He has even gone to state the colour of the lungi that the deceased was wearing at the relevant time and has stated that the deceased had put on a napkin on his shoulder. His house, being situated at a distance of 20 cubits from the spot, at that time his presence in the tea stall at that chhak is seen to be quite natural. He has also stated that his house as well as the house of the accused are equi distant from that tea stall and one has to cross 4 to 5 houses to reach the tea stall from his house as well as from the house of the accused. Simply because he has not been able to give the length and breadth of the spade with which the accused as per his evidence caused the injuries upon the deceased we are not in a position to view his evidence with suspicion when no other strong material to support surfaces.

The tea stall owner is P.W.3. His evidence is that the deceased, having arrived at his tea stall, had disclosed that while the accused was cutting the chakunda tree situated over the Government land, he, having raised objection, there was altercation between him and the accused. He further states that at that time, the accused was passing nearby and 10 to

15 minutes thereafter, the accused came with a spade in his hand, hurled obscene words aiming the deceased and dealt blow on his neck and that blow on the neck when resulted the fall of the deceased, the accused did not stop there but went on to give two more blows on the face and head of the deceased causing profuse bleeding injuries. He further states that after such assault, the assault took to his heels. Having carefully read the depositions of the witnesses more particularly the cross-examination part, we are really shocked to find that although some suggestions have been thrown to the witnesses those are completely without any basis and thus have not been proved through the I.O. (P.W.8). This witness has also stated the presence of other important witnesses, i.e., Babaji (P.W.1) and Madhaba (P.W.4) and others. The witness, having been asked regarding the size of the injury when has not been able to say the same, it is of absolutely no benefit to the defence in impeaching his evidence. He has even given the suggestion to be having no tea stall at the place when, we find that the overwhelming evidence on that score coming from the lips of other witnesses and more-so, those witnesses have not been suggested the said fact that in fact no tea stall of P.W.3 is there in that Chhak they have specifically stated.

As per the evidence of P.W.4, he, P.Ws.1 & 3 were present in the tea stall and had seen the occurrence. He has further stated that when they were in the tea stall of P.W.3, deceased arrived and disclosed about cutting of the chakuda tree standing over the Government land and his raising objection to the same. He has stated in the same vein, as has been stated by P.Ws.1 & 3 that the accused during that time, was passing nearby and coming with a spade dealt a blow on the right neck of the deceased resulting his fall and thereafter, he dealt two more blows on the right side face and head of the deceased. The evidence of P.W.4 is

wholly consistent with the evidence of P.Ws.1 & 3. This witness, having been cross-examined, we too find no such material to have been elicited to doubt his presence at the tea stall in seeing the incident when also nothing has been brought from this witness (P.W.3) as well as P.W.4 that they had any reason to falsely implicate the accused. It has also been the evidence of P.W.5 that he was there in the tea stall when the incident took place and first of all, the deceased came to disclose about his raising objection to the cutting of the chakunda tree by accused and shortly thereafter the accused, having arrived with the spade, assaulted the deceased by giving a blow on his neck and then after his fall, it is said that he gave two more blows. During cross-examination, the witness has further described that the accused dealt the first blow standing on the front towards the left of the deceased and as then there was no chance for anyone to intervene and immediately thereafter, since he gave two other blows, the witness could not take the risk of doing anything in the situation to save the deceased. The explanation under the circumstance being quite natural, cannot be brushed aside.

P.W.7 is the informant, who happens to be the nephew of the deceased. He has stated to have gone to the place getting the information about the assault upon his elder father Surendra (deceased). It is his specific evidence that then P.W.1, P.W.3 and others were present and from them, he came to know about the incident. He has reported the matter in writing before the I.I.C. (I.O-P.W.18) and that having been treated as FIR, he has proved it as Ext.8. When all the witnesses have stated that the accused left the place holding that spade, this witness has also stated to have not seen the spade lying near the place where his elder father was lying dead.

With all these rock solid evidence, being there on record and when after due scrutiny of the same, we find absolutely no infirmity therein to raise any doubt over their version that while Surendra was telling them about the incident, which had just taken before his arrival at the tea stall of P.W.3, accused came and dealt a spade blow and then after his fall, gave two more blows, which have led to his death, in our opinion, the Trial Court has rightly held that the prosecution has established the charge against the accused beyond reasonable doubt by leading clear, cogent and acceptable evidence.

11. In the result, the Appeal stands dismissed. The judgment of conviction and order of sentence dated 26th September, 2011 passed by the learned Ad hoc Additional Sessions Judge, FTC, Jagatsinghpur, in S.T. No.34/19 of 2011 are hereby confirmed.

(D. Dash)
Judge

Dr.S.K.Panigrahi, J I agree.

(Dr.S.K.Panigrahi)
Judge

Basu

Signature Not Verified
Digitally Signed
Signed by: BASUDEV NAYAK
Reason: Authentication
Location: OHC
Date: 22-Jun-2023 16:09:08